

Zameer Ahmad vs State Of U.P. on 25 July, 2023

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2023:AHC:150013

Court No. - 73

Case :- CRIMINAL MISC ANTICIPATORY BAIL APPLICATION U/S 438 CR.P.C. No. - 8226 of 2023

Applicant :- Zameer Ahmad

Opposite Party :- State of U.P.

Counsel for Applicant :- Bharat Garg, Ankit Agarwal

Counsel for Opposite Party :- G.A.

Hon'ble Nalin Kumar Srivastava, J.

1. Heard learned counsel for the applicant, learned A.G.A. for the State and perused the material available on record.
2. This application for anticipatory bail has been filed by applicant - Zameer Ahmad in connection with Case Crime No.772 of 2018, under Sections 420, 406, 467, 468, 471, 506 IPC, Police Station Civil Lines, District Moradabad.
3. Some negotiation took place between the co-accused Shibbu @ Javi Ahmad s/o the present applicant and the informant in respect of purchase of a plot / house and Rs.15 lakh were taken by the said Shibbu @ Javi Ahmad. Subsequently when the promise was not acted upon, a cheque of Rs.1 lakh was handed over by Shibbu @ Javi Ahmad in the name of the husband of the informant, but the same was dishonoured. Money of the informant was not repaid and the F.I.R. was lodged against accused Shibbu @ Javi Ahmad, his wife and the present applicant on 29.7.2018 and investigation started and now charge-sheet has been submitted in the matter.

4. It is submitted by the learned counsel for the applicant that the applicant is innocent and he has apprehension of his arrest in the above-mentioned case, whereas there is no credible evidence against her. He has been falsely implicated into this matter. Allegations levelled against the applicant are false. The investigation of the case has been completed and charge-sheet has been filed. It is further submitted that the applicant has been cooperative during the course of investigation. It is further submitted that no negotiation took place regarding the sale of any house. No money was given to the applicant by the informant. It is further submitted that the cheque of Rs.1 lakh, which is said to be dishonoured, was also not issued by the present applicant, but was issued by the co-accused Shibbu @ Javi Ahmad. Applicant has absolutely no role in the commission of the alleged crime. After filing of the charge-sheet, an Application u/s 482 Cr.P.C. No. - 44131 of 2019 was moved by the applicant and other accused wherein a protection for 30 days was granted by this Court vide order dated 3.12.2019. It is further submitted that the applicant is a heart patient and due to illness, he could not appear before the court concerned and now non-bailable warrant has been issued against him. He has not been declared proclaimed offender by the court and no process under sections 82, 83 Cr.P.C. has been issued against him. It is further submitted that a money suit has been filed by the informant against the co-accused Shibbu @ Javi Ahmad for realization of her money and in that suit the present applicant has not been arrayed as defendant. It is further submitted that the applicant has no criminal history to his credit and as such he is entitled for anticipatory bail.

5. Learned A.G.A. opposed the prayer for anticipatory bail.

6. In this matter, the negotiation for the purchase of plot / house has been taken place between Shibbu @ Javi Ahmad and the informant and no money was delivered in favour of the applicant nor any cheque was issued by the applicant in favour of the husband of the informant, when the negotiation was not acted upon.

7. In Sushila Aggarwal and others vs. State (NCT of Delhi) and another, (2020) 5 SCC 1, the Hon'ble Apex Court has settled the controversy finally by holding the anticipatory bail need not be of limited duration invariably. In appropriate case, it can continue upto conclusion of trial.

It has been further held therein that anticipatory bail granted can, depending on the conduct and behavior of the accused, continue after filing of the charge sheet till end of trial.

It has been further held by the Hon'ble Apex Court that while considering an application for grant of anticipatory bail, the court has to consider the nature of the offence, the role of the person, the likelihood of his influencing the course of investigation, or tampering with evidence including intimidating witnesses, likelihood of fleeing justice, such as leaving the country, etc. It has further been held that Courts ought to be generally guided by considerations such as the nature and gravity of the offences, the role attributed to the applicant, and the facts of the case, while considering whether to grant anticipatory bail, or refuse it. Whether to grant or not is a matter of discretion.

8. Hence, considering the settled principles of law regarding anticipatory bail, submissions of the learned counsel for the parties, nature of accusation, role of applicant and all attending facts and

circumstances of the case, without expressing any opinion of the merits of the case, in my view, it is a fit case for anticipatory bail to the applicant till end of the trial in the matter.

9. The anticipatory bail application is allowed.

10. In the event of arrest of the applicant in the aforesaid case crime, he shall be released on anticipatory bail till end of the trial on his furnishing a personal bond of Rs. 50,000/- with two sureties each in the like amount to the satisfaction of the Court concerned with the following conditions :-

(i) The applicant shall make himself available before the court concerned on the date fixed in the matter;

(ii) The applicant shall not directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him / her from disclosing such facts to the Court or to any police officer;

(iii) The applicant shall not leave India without the previous permission of the Court and if he has passport, the same shall be deposited by him before the S.S.P./S.P. Concerned.

11. In case of default of any of the conditions, same may be a ground for cancellation of protection granted to the applicant.

Order Date :- 25.7.2023 ss